

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
May 28, 2026
8:30 AM/1:30 PM

22. CHRISTINA STEELE V. JOSHUA WALLER

PFL20160057

Respondent filed a Request for Order (RFO) on January 13, 2026, requesting modification of child custody and parenting plan orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on February 13, 2026, and a review hearing on April 9, 2026. Proof of Service shows Petitioner was only served with the RFO and a blank CCRC questionnaire.

Both parties appeared for CCRC and fully participated. The minor participated as well. A report with agreements and recommendations was filed with the court on March 2, 2026. Copies were mailed to the parties on March 4th.

On March 27, 2026, Petitioner filed a request to reschedule the hearing due to not being properly served. On April 1, 2026, the court granted the request to continue the hearing to May 28, 2026 and directed Respondent to properly serve Petitioner. There is no Proof of Service showing Petitioner properly served Respondent with the order rescheduling the hearing.

There is no Proof of Service showing Petitioner was properly served, nor is there a Proof of Service showing the Department of Child Support Services, who is a party to the case, was properly served.

Petitioner filed an RFO on March 20, 2026, requesting modification of custody and parenting plan orders. It is set to be heard June 18, 2026. It was served on Respondent March 23, 2026. Respondent filed a responsive declaration to Petitioner's March 20th RFO on April 2, 2026. It was served on April 2, 2026. Neither party has served the Department of Child Support Services (DCSS).

The court has read and considered the filings as outlined above. The court finds good cause to proceed with Respondent's RFO, despite the lack of proper service. The court finds each party is fully aware of the requested orders and fully participated in CCRC. Neither party is requesting a modification of child support and as such the court finds good cause to proceed, despite the lack of service on DCSS. Additionally, the court is advancing the June 18, 2026 hearing to May 28, 2026, as it is duplicative of the January 13th RFO. The court deems Petitioner's March 20th RFO to be a responsive declaration to Respondent's January 13th RFO. The court vacates the June 18th hearing.

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The court finds the agreements and recommendations set forth in the March 2nd CCRC report to be in the best interests of the minor. The court adopts the agreements and recommendations as set forth as its orders.

All prior orders not in conflict with this order remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #22: THE COURT FINDS GOOD CAUSE TO PROCEED WITH RESPONDENT'S RFO, DESPITE THE LACK OF PROPER SERVICE. THE COURT FINDS EACH PARTY IS FULLY AWARE OF THE REQUESTED ORDERS AND FULLY PARTICIPATED IN CCRC. NEITHER PARTY IS REQUESTING A MODIFICATION OF CHILD SUPPORT AND AS SUCH THE COURT FINDS GOOD CAUSE TO PROCEED, DESPITE THE LACK OF SERVICE ON DCSS. ADDITIONALLY, THE COURT IS ADVANCING THE JUNE 18, 2026 HEARING TO MAY 28, 2026, AS IT IS DUPLICATIVE OF THE JANUARY 13TH RFO. THE COURT DEEMS PETITIONER'S MARCH 20TH RFO TO BE A RESPONSIVE DECLARATION TO RESPONDENT'S JANUARY 13TH RFO. THE COURT VACATES THE JUNE 18TH HEARING.

THE COURT FINDS THE AGREEMENTS AND RECOMMENDATIONS AS SET FORTH IN THE MARCH 2ND CCRC REPORT TO BE IN THE BEST INTERESTS OF THE MINOR. THE COURT ADOPTS THE AGREEMENTS AND RECOMMENDATIONS AS SET FORTH AS ITS ORDERS.

ALL PRIOR ORDERS NOT IN CONFLICT WITH THIS ORDER REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON

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8.05.07.**

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23. AMANDA TAPIA V. JOHN DIVINE

26FL0182

Petitioner filed a Petition for Custody and Support on February 27, 2026. A Summons was issued the same day. Petitioner concurrently filed a Request for Order (RFO) seeking child custody orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on April 1, 2026, and a review hearing on May 28, 2026. Upon review of the court file, there is no Proof of Service showing Respondent was properly served with the Petition, Summons, or RFO and other necessary documents.

Only Petitioner appeared at the CCRC appointment. As such, a single parent report was filed with the court on May 14, 2026. Copies were mailed to the parties on May 14th.

The court drops the matter from calendar as the court does not have jurisdiction over the parties since the Petition and Summons have not been served. The court further drops the matter from calendar due to the lack of proper service of the RFO.

TENTATIVE RULING #23: THE COURT DROPS THE MATTER FROM CALENDAR AS THE COURT DOES NOT HAVE JURISDICTION OVER THE PARTIES SINCE THE PETITION AND SUMMONS HAVE NOT BEEN SERVED. THE COURT FURTHER DROPS THE MATTER FROM CALENDAR DUE TO THE LACK OF PROPER SERVICE OF THE RFO.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.